

25CV04676 Edward Connaughton vs City of Santa Barbara

County: santa-barbara

Division: Civil Law & Motion

Department: 5 SB-Anacapa

Hearing date: 2026-07-27

Motion: 1. CMC; 2. Demurrer

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Tentative Ruling: Edward Connaughton vs City of Santa Barbara

Case Number

25CV04676

Case Type

Civil Law & Motion

Hearing Date / Time

Mon, 07/27/2026 - 10:00

Nature of Proceedings

1. CMC; 2. Demurrer

Tentative Ruling

Edward Connaughton v. City of Santa Barbara

Case No. 25CV04676

Hearing Date: July 27, 2026

MATTER: Defendant City of Santa Barbara's Demurrer to Plaintiff Edward Connaughton's First Amended Complaint

ATTORNEYS: For Plaintiff Edward Connaughton: Self-Represented

For Defendant City of Santa Barbara: Sarah J. Knecht, Tom R. Shapiro, Delaney R. Satz, Office of the City Attorney

TENTATIVE RULING:

The court will continue the hearing on the City of Santa Barbara's (City) demurrer to September 28, 2026, at 10:00 a.m. in this department. Plaintiff may file an opposition on or before September 15. The City may file a reply on or before September 21. On or before August 11, 2026, the City shall file a proof of service demonstrating effective service on plaintiff as to the City's demurrer and this order of continuance.

Background:

Plaintiff Edward Connaughton commenced this action on July 29, 2025, by filing of a Judicial Council form complaint against defendant City of Santa Barbara (City) for targeting, harassment, and termination. (Compl., ¶ 10.) However, the causes of action set forth in the attachment are for general negligence and intentional tort.

On February 9, 2026, the court sustained the City's demurrer to the complaint with leave to amend on the basis that the complaint failed to state a cause of action.

On February 27, 2026, plaintiff filed a first amended complaint (FAC). The FAC is set forth on Judicial Counsel form PLD-PI-001. The box is selected for causes of action, "other," and the FAC specifies the attached causes of action are for wrongful termination, targeting, and harassment. (FAC, ¶ 10.) The FAC attaches an "amended declaration" dated February 27, 2026 (Amended Decl.). However, the causes of action set forth in the attached declaration are for intentional tort, denial of due process, and denial of discovery. (Amended Decl., pp. 2-3.) The damages selected on the Judicial Council form are wage loss, general damage, and loss of earning capacity. (FAC, ¶ 11.) Plaintiff seeks compensatory damages according to proof in the amount of \$250,000. (FAC, ¶ 14.)

As stated in the attached amended declaration: Plaintiff was terminated from employment as Airport Facilities Supervisor on July 27, 2023. (Amended Decl., p. 2.) Plaintiff attempted to appeal his termination within the statutory timeframe but received no substantive response. (Ibid.) Plaintiff was subjected to harassment and retaliation in violation of the California Fair Housing and Employment Act (FEHA). (Ibid.) Plaintiff made complaints to his supervisors. (Ibid.) The City lied during his termination proceedings. (Amended Decl., p. 3.) Plaintiff was denied due process because plaintiff's request for a "Skelly hearing" was denied. (Ibid.) Plaintiff was denied discovery permitted by Government Code sections 7920 through 7931. (Ibid.) Plaintiff suffered lost wages, emotional distress, and other damages. (Ibid.)

The City demurs to the FAC on the grounds that: (1) the court lacks jurisdiction over the case due to plaintiff's failure to comply with Government Code section 810, et seq.; (2) the FAC does not state facts sufficient to constitute any causes of action; and (3) the FAC is ambiguous and unintelligible. Plaintiff did not file an opposition. The City filed a notice of non-opposition.

Analysis:

On April 6, 2026, the City filed a demurrer to the FAC. As of the preparation of this tentative ruling, no opposition or response has been filed by plaintiff. Based on the proof of service attached to the City's demurrer, the City served plaintiff by email only. (See Demurrer, p. 9.) This is insufficient. Plaintiff is a self-represented party. (See FAC, p. 1.) A self-represented party may consent to electronic service by serving a notice on all parties and filing the notice with the court or manifesting affirmative consent through electronic means with the court or the court's electronic service provider. (Code Civ. Proc., § 1010.6, subd. (c)(3).) "[S]elf-represented parties ... are to be served by non-electronic methods unless they affirmatively consent to electronic service." (Cal. Rules of Court, rule 2.251(c)(3)(B).) "The act of electronic filing shall not be construed as express consent." (Code Civ. Proc., § 1010.6, subd. (c)(3)(ii).)

“Unless otherwise ordered or specifically provided by law, all moving and supporting papers must be served and filed in accordance with Code of Civil Procedure section 1005 and, when applicable, the statutes and rules providing for electronic filing and service.” (Cal. Rule of Court, rule 3.1300(a).) “Proof of service of the moving papers must be filed no later than five court days before the time appointed for the hearing.” (Id., rule 3.1300(c).) The City has the burden of proof on service. (See Evid. Code, § 500.) The court’s records do not reflect affirmative consent by plaintiff to electronic service, and the City makes no reference to any such consent. The proof of service filed by the City does not comply with the Code of Civil Procedure and Rules of Court, as set forth above. For all these reasons, the court will continue the hearing on the City’s demurrer to September 28, 2026.

Judges

Judge Colleen Sterne

Dept. 5 SB-Anacapa

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